

Superior Court of the State of California  
County of Orange  
TENTATIVE RULINGS FOR DEPARTMENT CM08  
**Temporary Judge Catherine Evans**

**Date: 09/23/2026**

**Court Room Rules and Notices:**

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| # | Case Name                                   | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
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| 1 | <b><i>Troop – Trust (2025-01477158)</i></b> | <p style="text-align: center;">Motion to Quash Discovery Subpoena</p> <p>Respondent Kathleen Dorfman’s Motion to Quash Records Subpoena Issued by Petitioner to Kaiser Permanente Riverside Medical Center (ROA 25) is <b>GRANTED</b>.</p> <p>This action arises out of the Orin C. Narm and Sarah I. Troop Revocable Trust, dated July 19, 2017 (Trust). Petitioner Tanya C. Narm (daughter of Orin C. Narm) asserts she is a beneficiary of the Trust, entitled to notice and an accounting from Respondent Kathleen Dorfman, the current trustee of the Trust. Petitioner alleges trustor Sarah I. Troop is alive but is incompetent because she is suffering from Alzheimer’s and that such incompetence renders the Trust irrevocable so that Respondent, as trustee, has a duty to provide notice and account. (Prob. Code, §, 15800.)</p> <p>In connection with her petition, Petitioner issued a subpoena to Kaiser Permanente Riverside Medical Center seeking records relating to Troop’s capacity, including any “diagnosis of or treatment for dementia, Alzheimer’s Disease, and memory or cognitive impairment, from January 1, 2024 to present.” Respondent seeks to quash the subpoena on the ground the records are constitutionally protected medical records and are not relevant to the claims of the petition.</p> |

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|  | <p>A party to litigation “may obtain discovery regarding any matter, <i>not privileged</i>, that is relevant to the subject matter involved in the pending action ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code of Civ. Proc., § 2017.010, emphasis added.) Confidential communications between a patient and a medical provider, including examinations, diagnoses, and advice provided by the medical provider, are not subject to discovery. (Evidence Code, § 992 &amp; 994 [a patient has “a privilege to refuse to disclose, and to prevent another from disclosing” confidential communications between the patient and the medical provider].) The subpoenas improperly seek privileged confidential communications, which are explicitly excluded from production regardless of relevance.</p> <p>There are exceptions to this general rule. For example, a person may waive the privilege by putting his/her medical condition at issue in the proceeding. (<i>John B. v. Superior Court</i> (2006) 38 Cal.4th 1177, 1199; <i>Vinson v. Superior Court</i> (1987) 43 Cal.3d 833, 842.) Here, however, Troop is not a party to this proceeding and has not put her medical condition at issue. So, there is no waiver.</p> <p>In addition, there is no privilege “as to a communication relevant to an issue concerning the condition of the patient if such issue has been tendered by . . . [a]ny party claiming through or under the patient.” (Evid. Code, § 996.) In her objection to the petition, Respondent repeatedly asserts Troop is not suffering from Alzheimer’s and is not incompetent. Those assertions only fall within section 996 if Respondent is claiming through or under Troop. The “through or under” language was addressed by one California appellate court as follows: “We think the words “of any party claiming through or under the person” refers to a person acting in a representative capacity. The meanings given to the word “through,” that is, “by means of; by the help or agency or; by the intermediary,” “<i>in the name of</i>” all relate to action on behalf of another. The meaning of the word “under,” that is, “subject to the bidding or authority of,” describes the power of the person being represented over the actions of the representative.”” (<i>Karen P. v. Superior Court</i> (2011) 200 Cal.App.4th 908, 914.)</p> |
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|   |                                           | <p>Although Respondent does not assert any statutory or contractual authority to act as Troop's representative, she filed the motion to quash on Troop's behalf under what she asserts is her duty of loyalty as trustee to Troop as trustor. (Motion at 3:6-8; 5:7-16.) It appears section 996 may apply.</p> <p>However, that is not the end of the inquiry. Even if an exception applies, the subpoenaed documents remain protected by Troop's constitutional right to privacy. (Cal. Const., art. I, § 1; <i>Vinson, supra</i>, 43 Cal.3d at p. 841.) Whether documents protected by a right of privacy should be produced is evaluated under the following balancing test: "[t]he party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interests [the] disclosure serves, while a party seeking protection may identify feasible alternatives that serve the same interests or protective measure that would diminish the loss of privacy." (<i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 552.) Troop's medical records are protected by the constitutional right to privacy.</p> <p>Having weighed the various factors required under <i>Williams</i>, the court finds Petitioner has not identified any legitimate or important countervailing interest sufficient to overcome Troop's constitutional right of privacy in her medical records. Further, there are feasible alternatives that serve the same interests, including written discovery and depositions. Accordingly, the motion to quash is <b>GRANTED</b>.</p> <p>Respondent is directed to give notice.</p> |
| 2 | <b>Guerrero - Probate (2025-01529971)</b> | <p>Motion to Be Relieved as Counsel of Record</p> <p>Paul Horn Law Group, PC's Motion to Be Relieved as Counsel for Mary Ignacia Guerrero Mauri (ROA 54) is <b>GRANTED</b>.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |